

# STATE OF NEW YORK

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9111--A

2025-2026 Regular Sessions

## IN ASSEMBLY

September 26, 2025

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Introduced by M. of A. GALLAGHER, KELLES, TAPIA, VALDEZ, SHRESTHA, SCHIAVONI, LEVENBERG, R. CARROLL, SIMON, FORREST, ROSENTHAL, LASHER, RAGA -- read once and referred to the Committee on Energy -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public service law and the energy law, in relation to portable solar generation devices

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as  
2 the "Solar Up Now NY Act".

3 § 2. Paragraph (d) of subdivision 1 of section 66-j of the public  
4 service law, as amended by chapter 253 of the laws of 2013, is amended  
5 and a new paragraph (j) is added to subdivision 1 to read as follows:

6 (d) "Solar electric generating equipment" means a photovoltaic system

7 (i) (A) in the case of a residential customer (other than a farm utiliz-  
8 ing a residential meter), with a rated capacity of not more than twen-  
9 ty-five kilowatts; (B) in the case of a customer who owns or operates a

10 farm operation as such term is defined in subdivision eleven of section  
11 three hundred one of the agriculture and markets law utilizing a resi-

12 dential meter with a rated capacity of not more than one hundred kilo-  
13 watts; and (C) in the case of a non-residential customer, with a rated

14 capacity of not more than two thousand kilowatts; and (ii) that is manu-  
15 factured, installed, and operated in accordance with applicable govern-

16 ment and industry standards, that is connected to the electric system  
17 and operated in conjunction with an electric corporation's transmission

18 and distribution facilities, and that is operated in compliance with any  
19 standards and requirements established under this section. Solar elec-

20 tric generating equipment shall not include a portable solar generation  
21 device.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets  
[-] is old law to be omitted.

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1 (j) "Portable solar generation device" means a photovoltaic system and  
2 associated equipment that:

3 (i) is designed to be connected to a building's electrical system  
4 through a standard electrical outlet;

5 (ii) is limited to supplying a maximum power output of not more than  
6 one thousand two hundred watts to the utility electric grid; and

7 (iii) is certified by underwriters laboratories or an equivalent  
8 nationally recognized testing laboratory.

9 § 3. Subdivision 7 of section 66-j of the public service law is renum-  
10 bered subdivision 8 and a new subdivision 7 is added to read as follows:

11 7. Portable solar generation device. Notwithstanding any other  
12 provision of law, unless the owner of a portable solar generation device  
13 shall choose to voluntarily enter into an interconnection or net meter-  
14 ing agreement:

15 (a) A portable solar generation device shall not be subject to inter-  
16 connection or net metering requirements.

17 (b) An electric corporation may not require a customer using a port-  
18 able solar generation device to:

19 (i) obtain the electric corporation's approval before installing or  
20 using the device;

21 (ii) pay any fee or charge related to the device or for feeding energy  
22 back into the utility electric grid; or

23 (iii) install any additional controls or equipment beyond what is  
24 integrated into the device.

25 (c) An electric corporation shall not be liable for any damage or  
26 injury caused by a portable solar generation device.

27 § 4. Section 11-104 of the energy law is amended by adding a new  
28 subdivision 10 to read as follows:

29 10. Within one year of the effective date of this subdivision, irre-  
30 spective of any system standard established by any testing laboratory,  
31 the code shall be optimized to allow for portable solar generation  
32 devices, as defined in section sixty-six-j of the public service law, to  
33 be connected to a building's wiring through an electrical outlet. For  
34 devices smaller than a threshold of no less than three hundred ninety-  
35 one watts, the code shall not require any changes to the building's  
36 premises wiring.

37 § 5. This act shall take effect immediately.